

court has broad discretion, it has “no discretion to act capriciously.” “It must exercise its discretion ‘in favor of the party most likely to be injured.’” (*Robbins v. Superior Court* (1985) 38 Cal.3d 199, 205.)

“To obtain a preliminary injunction, a plaintiff ordinarily is required to present evidence of the irreparable injury or interim harm that it will suffer if an injunction is not issued pending an adjudication of the merits.” (*White v. Davis* (2003) 30 Cal.4th 528, 554.) Irreparable harm is often related to the ‘inadequate legal remedy’ (*i.e.*, the damages remedy is inadequate because some immeasurable harm is threatened).

In this context, Plaintiff argues that the damages remedy is inadequate because of the threat of dissipation of assets, relying on *Wind v. Herbert* (1960) 186 Cal.App.2d 276.

In *Wind*, the Court of Appeal affirmed a trial court’s preliminary injunction in a partnership’s dissolution action which was designed to maintain the status quo pending adjudication on the merits. (*Wind, supra*, at pp. 279-283.) The injunction enjoined a partner in a card club from breaching a partnership agreement by depositing money from the club into a bank account that was not accessible to the other parties. (*Id.*) The injunction was within the court’s discretion because the partner would continue to dissipate the assets of the partnership. (See *id.* at p. 285.) The Court of Appeal noted that the trial court also could have found that the disbursements might be able to be adequately traced, and that an accounting that could eventually be ordered “might not fully disclose the damages suffered.” (*Id.*) “Further, use by defendants of partnership assets for their own gain and to the detriment of plaintiffs is a species of damage, ‘that ought not to be submitted to on the one hand or inflicted on the other.’ Such acts would constitute a flagrant breach of trust. Under the circumstances, the trial court properly issued a preliminary injunction to assure that the partnership assets will remain intact pending an accounting and a final hearing on the merits.” (*Id.* at pp. 285-286.)

Here, however, there is no evidence that Defendant is diverting liquid assets to a bank account that is not accessible by Plaintiff. As noted above, Defendant has rebutted all of the factual allegations of Plaintiff Dana Finegold’s declaration with his own declaration testimony. Plaintiff has not adduced evidence of “an actual or threatened injury to property or personal rights which cannot be compensated by an ordinary damage award.” (*Brownfield v. Daniel Freeman Marina Hospital* (1989) 208 Cal.App.3d 405, 410 (internal citation omitted).)

Finally, the Court notes that a preliminary mandatory injunction is rarely granted; it is permitted only in extreme cases where the right to such relief is clearly established. (*Shoemaker v. County of Los Angeles* (1995) 37 Cal.App.4th 618, 625.) Plaintiff has not met her burden to establish her right to relief. The Motion is **denied**.

Evidentiary Objections

Neither party made any evidentiary objections.

15. 9:00 AM CASE NUMBER: MSC21-00650
CASE NAME: MARIA SALVADOR VS. GULF HARBOUR INVESTMENTS CORPORATION
ATTORNEY'S FEES
FILED BY:
TENTATIVE RULING:

The matter is stayed pursuant to the notice of bankruptcy filed 3/18/25.

Hearing on Defendant's post-judgment motion for attorneys' fees (originally filed January 24, 2025) is continued to **February 26, 2027** at 9:00 a.m. in Department 32.

Please note that this case will be assigned to another department effective January 4, 2027. Please check the court's website to ascertain the department that will be presiding over this case for all purposes.

16. 9:00 AM CASE NUMBER: MSC21-01379

CASE NAME: MOFFETT VS. SONIC WALNUT CREEK

POST-JUDGMENT ATTORNEYS FEES AND COSTS

FILED BY: MOFFETT, JAMES

TENTATIVE RULING:

The unopposed motion for an Order Granting Judgment Creditor's Motion for Post-Judgment Attorneys' Fees and Costs is granted, in the amount of \$8443.77. The Court will execute the proposed order lodged with the Court on April 10, 2026.

Discovery Law & Motion

17. 9:01 AM CASE NUMBER: C25-01045

CASE NAME: JOSE LOPEZ-VALDEZ VS. LYFT, INC.,

COMPEL CROSS-DEFENDANT MICHAEL JENKINS' FURTHER RESPONSES TO SPECIAL INTERROGATORIES, SET ONE

FILED BY: D & A CARRIER, INC,

TENTATIVE RULING:

On May 22, 2026, the Court granted Defendant Lyft's Motion to Compel Arbitration and stayed this action. The court ordered, "Lyft and plaintiff shall submit the action to arbitration and the action is otherwise stayed, including all proceedings against D & A Carrier, Inc.; Jose Noriega, Michael Jenkins, and Intervenor, Mobilias Insurance Company, as well as any cross-actions filed by the Parties."

Once a court grants a motion to compel arbitration, the case enters what has been called "the twilight zone of abatement," in which the court maintains "merely a vestigial jurisdiction over matters submitted to arbitration." (Brock v. Kaiser Foundation Hospitals (1992) 10 Cal.App.4th 1790, 1796.) This vestigial jurisdiction generally "consists solely of making the determination, upon conclusion of the arbitration proceedings, of whether there was an award on the merits ... or not...." (Id.) It follows that this court has no jurisdiction to adjudicate discovery motions pertaining to this lawsuit.

Accordingly, the court lacks jurisdiction to rule on this discovery motion and it is dropped from calendar without prejudice.